



ISE LAW GROUP PC

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THE OISE LAW GROUP LEGAL REPRESENTATION AGREEMENT

This Agreement governs legal representation in Client's claims arising under the Fair Credit Reporting Act ("FCRA"), Fair Debt Collection Practices Act ("FDCPA"), and related state or federal consumer protection laws.

1. Authorization for Representation

Client authorizes **Oise Law Group PC** to represent Client in potential claims against **debt collectors, credit reporting agencies, and creditors** ("Defendant") or any other parties arising from violations of the FDCPA, FCRA, or related consumer laws.

Client grants the Firm full authority to investigate, evaluate, negotiate, and litigate these claims. The Firm may associate co-counsel, experts, or third parties at its discretion.

2. Scope of Representation

The Firm will:

- Review Client's documents and communications
- Analyze potential consumer law violations
- Advise Client on rights and legal options
- Prepare and file claims where appropriate
- Negotiate settlements or litigate claims

No specific result is guaranteed. Representation is limited to FDCPA, FCRA, and related consumer protection matters only.

3. Electronic Signatures

Client and Firm agree that this Agreement may be executed electronically via email, Dubsado, electronic signature, or fax. Electronic signatures carry the same legal effect as handwritten signatures.

4. FCRA/FDCPA Explanation of Rights

FDCPA:

The FDCPA prohibits debt collectors from engaging in abusive or deceptive conduct. Statutory damages under FDCPA are **up to \$1,000 per lawsuit**, not per violation. Actual damages may also be recoverable if provable.

FCRA:

The FCRA governs credit reporting and the duties of furnishers and credit reporting agencies.

- **Negligent violations** allow a claim for **actual damages only**.
- **Willful violations** allow statutory damages of **\$100–\$1,000 per action**, plus punitive damages at the court's discretion.

Damages depend on the facts and supporting documentation.

The Firm cannot and does not guarantee any specific recovery amount.

5. Damages and Client Recovery

Client recovery may include statutory damages, actual damages, and in rare cases punitive damages. Actual damages must be supported by documentation and cannot be speculative.

Client understands that:

- Settlement values vary significantly
- Many cases resolve based solely on statutory damages
- The Firm cannot predict or guarantee any settlement amount

Client acknowledges that any representation of “typical” outcomes is not a promise or guarantee.

6. Attorney's Fees & Costs

Client will **not** be personally responsible for attorney's fees.

Under the FDCPA and FCRA's **fee-shifting provisions**, the Defendant pays the Firm's attorney's fees and costs as part of any settlement or judgment.

Costs

Litigation-related costs include:

- Filing fees
- Service of process
- Postage & courier services
- Legal research fees (Westlaw, Lexis, PACER)
- Copying & scanning
- Travel expenses
- Paralegal Fees
- Expert fees (if applicable)

These costs are deducted from Client's settlement portion, not billed directly to the Client.

Client will **never** owe costs if no settlement or recovery is obtained.

The Firm's standard hourly rate is **\$400/hr**, but Client is **not billed hourly** unless the Client terminates the Firm before recovery (see Section 9).

7. Settlement Authority & Disbursement of Funds

Client authorizes the Firm to conduct all negotiations with the Defendant. The Firm will notify the Client when a **final or recommended** settlement offer is available.

Client agrees to respond to any final settlement offer within **five (5) business days**. If the Client does not respond within that time, the Client authorizes the Firm to accept any settlement that:

1. Is consistent with the Client's previously stated goals, **and**
2. Provides a fair and reasonable resolution under the circumstances.

If the Client becomes unreachable, refuses to communicate, or fails to respond to the Firm's attempts at contact, the Firm may accept a reasonable settlement offer in the Client's best interests.

All settlement funds will be handled through the Firm's trust account and disbursed upon clearance.

Disbursement of Funds

All settlement funds will be deposited into the Firm's trust account. Funds are released to Client once:

1. The settlement check clears; and
 2. Client completes the **Settlement Direct Deposit Authorization Form** or sends information necessary to disperse payment.
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8. Non-Disparagement Clause

Client agrees not to make false, defamatory, or knowingly harmful statements about the Firm, its attorneys, or staff, including on social media or online review platforms.

This clause does NOT prevent the Client from:

- Providing truthful information
 - Reporting misconduct to a bar association or government agency
 - Making statements required by law or court order
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9. Termination of Representation

Either party may terminate representation at any time.

If the Firm terminates representation:

Client owes **nothing**, except reimbursement of costs advanced **only if a settlement is later reached**.

If Client terminates representation:

Client agrees to pay the Firm's reasonable hourly fees for work performed **only if a settlement or monetary recovery is eventually obtained**, plus any advanced costs.

If no recovery occurs, Client owes nothing.

9. Termination of Representation

Either the Client or the Firm may terminate this Agreement at any time, subject to the Rules of Professional Conduct and, if applicable, court approval.

9.1 If the Firm Terminates Representation

If the Firm ends the representation **before any settlement or recovery is reached**, the Client will **not** owe the Firm any attorney's fees.

However, if the Client later receives a settlement, judgment, or recovery **arising from the same claim**, the Firm is entitled to reimbursement of any **costs** the Firm advanced on the Client's behalf.

9.2 If the Client Terminates Representation

If the Client terminates the Firm **before a settlement, judgment, or recovery is obtained**, the Client understands and agrees that:

1. **The Firm has already performed legal work on the Client's behalf**, including document review, investigation, drafting, negotiation, or litigation preparation.
2. Because the Client is choosing to end the relationship early, the Client will be responsible for the Firm's time spent on the matter **up to the date of termination**, billed at the Firm's standard hourly rate of **\$400 per hour**.
3. The Client will also be responsible for **all costs** (such as filing fees, service fees, postage, research charges, etc.) already invested by the Firm.

4. These fees and costs become due and payable **only if the Client later obtains any settlement, judgment, or recovery** related to the same facts or legal claims.
 5. **If the Client receives no recovery from the case, the Client owes the Firm nothing.**
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10. Confidentiality

All communications between Client and Firm are confidential and protected by attorney-client privilege.

11. File Retention

The Firm may store Client's file electronically and may destroy it **five (5) years** after the conclusion of representation unless Client requests it sooner in writing.

CLIENT EXECUTION

Client Signature: _____

Date: _____

Printed Name: _____